

2 Service Agreement

MASTER SERVICE AGREEMENT (MSA)

This Master Service Agreement (the "Agreement") is entered into as of **[Date]** by and between:

[Client Name/Company Name], having its principal place of business at **[Client Address]** (the "Client");

AND

NOVADESK, having its principal place of business at **[Agency Address]** (the "Agency").

1. SCOPE OF SERVICES

The Agency agrees to provide the services described in the specific Scope of Work (SOW) documents or project proposals attached to this Agreement (collectively, the "Services"). Each SOW shall be governed by the terms and conditions of this Agreement.

2. TIMELINE AND MILESTONES

The timeline and specific milestones for each project will be outlined in the respective SOW. Time is of the essence; however, any delays in content delivery, approvals, or access provided by the Client will extend the project timeline accordingly.

3. FEES, TAXES, AND PAYMENT TERMS

- Fees**: The Client agrees to pay the Agency the fees set forth in the applicable SOW.
- Payment Schedule**: Payments shall be made according to the milestone schedule (e.g., 50% advance, 30% on design approval, 20% prior to final handover).
- Taxes**: All fees are exclusive of GST and other applicable taxes, which shall be borne by the Client.
- Late Payments**: Invoices are due within **[Number, e.g., 7]** days of receipt. Late payments may incur interest or result in the suspension of Services.

4. CLIENT OBLIGATIONS

The Client is responsible for:

- * Providing timely feedback and approvals.

- * Supplying all necessary content, brand assets, and credentials (hosting, APIs, etc.).
- * Ensuring that they have the legal right and ownership of any provided materials (images, text, fonts) and indemnifying the Agency against copyright claims.

5. CHANGE CONTROL PROCESS

Any request for work outside the approved SOW will be treated as a "Change Request." The Agency will provide a cost and time impact estimate. No additional work will commence without written approval (email accepted) of the Change Request.

6. INTELLECTUAL PROPERTY RIGHTS

1. ****Pre-existing IP****: Each party retains ownership of its pre-existing intellectual property.
2. ****Deliverables****: Upon receipt of full and final payment, the Agency transfers all rights, title, and interest in the custom deliverables to the Client.
3. ****License to Agency****: The Client grants the Agency the right to display the completed project in its portfolio and marketing materials, unless explicitly restricted by an NDA.

7. ACCEPTANCE AND WARRANTY

1. ****Acceptance****: The Client shall have [Number, e.g., 5] days to review and test the deliverables. If no issues are reported in writing within this period, the work is deemed accepted.
2. ****Warranty****: The Agency warrants that the Services will be performed in a professional manner. Following launch, the Agency provides a [Number, e.g., 30]-day bug-fix period for issues related to the delivered code.

8. TERMINATION

Either party may terminate this Agreement with [Number, e.g., 15] days written notice. In the event of termination, the Client shall pay for all work completed up to the termination date.

9. LIMITATION OF LIABILITY

The total liability of the Agency for any claim arising out of this Agreement shall not exceed the total fees paid by the Client for the specific SOW giving rise to the claim. The Agency shall not be liable for indirect, consequential, or punitive damages.

10. DISPUTE RESOLUTION AND GOVERNING LAW

This Agreement shall be governed by the laws of India. Any disputes shall be resolved through good-faith negotiations. If unresolved, disputes shall be subject to the exclusive jurisdiction of the courts in ****[City, State]****.

****IN WITNESS WHEREOF****, the Parties hereto have executed this Master Service Agreement as of the date first above written.

For Client

****Signature:**** _____

****Name:**** _____

****Date:**** _____

For NOVADESK

****Signature:**** _____

****Name:**** _____

****Date:**** _____